



DECISION

Complaint No. : POS/6690/2021/F

Name and address of the complainant : Mr. Muhammad Qasim s/o Muhammad Hanif, House No.R-819, Sector 15-A/3, Buffer Zone, Nagan Chowrangi, North Nazimabad Town, Karachi

Name of the Agency Complained against : Revenue Department

Name & Designation of Investigating Officer : Syed Ali Mumtaz Zaidi, (PAS), Advisor-F

Vetted by : --

Subject : **ALLEGED DELAY IN RENEWAL OF LEASE OF PLOT NO.LR-8/3, PREMISES NO.G-5, G-9, G-14, G-15, KHATOO SETH COMPOUND JAMILA STREET, GHAS MANDI, RANCHORE LINE LAWRENCE QUARTERS, KARACHI.**

THE COMPLAINT:

Mr. Muhammad Qasim in his complaint dated 14.12.2021 states that he is a co-owner of plot No. LR-8/3 consisting of premises Nos. G-5, G-9, G-14 and G-15, Khatoo Seth Compound Jamila Street, Ghas Mandi, Ranchore Line, Lawrence Quarters, Karachi. His sister and his mother are also co-owners of the premises. One share belonged to his paternal uncle (Taya) who has passed away leaving behind one daughter who is his only legal heir. However, the lease of plot has expired. For its further renewal he submitted an application to the Land Utilization Department. The Land Utilization Department through its letter No.07-2006-2021/SO-II/728 dated 30.03.2021 called for a report from the Deputy Commissioner South which has still not been furnished. He further states that he approached the office of DC South but to no avail. He requested this Institution to intervene in the matter and order Deputy Commissioner to furnish report to the Land Utilization Department.

PROCEEDINGS:

2. The complaint was admitted under Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (amended up to date). Accordingly the matter was taken up with the Deputy Commissioner, District South, Karachi vide letter No.POS/6690/2021/F dated 05.01.2022.

3. In response to the above the Additional Deputy Commissioner-II, South Karachi has furnished letter dated 02.02.2022. The letter quotes Assistant Commissioner Garden Sub-Division, South Karachi's letter No.AC/Garden/ South/44/2021 dated 21.01.2022 endorsing report of Mukhtiarkar Garden Sub-Division, South, Karachi. Report states that necessary action to proceed further will be taken upon the verification of the genuineness of FTOs (First Transfer Orders) issued in respect of plot No. LR-8/3, measuring total area of 1093 sq. yds. from the allotment authority i.e. Deputy Secretary (RS&EP), BOR Sindh.

4. Consequently the matter was moved to the Deputy Secretary (RS&EP), BOR. He vide letter dated 01.03.2022 verified the allotment of 04 properties to one Wali Mohammad S/o Amir Mohammad and to Mohammad Hanif S/o Amir Mohammad.

5. The complainant was called upon to establish his relationship with the allottees as reported above. He appeared and produced copy of death certificate of Mohammad Hanif S/o Amir Mohammad, FRC and CNIC.

6. For the resolution of this matter, a hearing was fixed on 08.01.2024 which was attended by Mukhtiarkar Garden who stated that Survey Superintendent Karachi be asked to undertake the requisite measurements so that further action be taken as required.

7. The Survey Superintendent Karachi was then advised to undertake the measurement of subject premises who vide his letter dated 13.05.2024 reported that the field survey staff of his office has carried out the demarcation of Plot No. LR-8/3, premises No.G-5, G-9, G-14 and G-15 on 07.05.2024 in the presence of Revenue Authorities and all parties concerned.

8. Again on 19.08.2025 the Mukhtiarkar Revenue Garden appeared on notice before the Investigating Officer and submitted report dated 18.08.2025 stating therein that the Survey Superintendent Karachi has only furnished photocopy of site plans of two premises viz. G-14 and G-15 while site plans of remaining two premises No.G-5 and G-9 were still awaited.

9. A notice was issued to Survey Superintendent Karachi. In response Survey Superintendent vide letter dated 17.11.2025 reported that the demarcation of Plot No. LR-8/3, premises No.G-5 and G-9 has also been carried out on 07.05.2024.

FINDINGS:

10. The record shows that the lease renewal application of the complainant remained pending due to non-submission of the requisite report by the office of the Deputy Commissioner, South to the Land Utilization Department. This inaction caused unnecessary delay and hardship to the complainant.

11. It is evident that after the intervention of this Institution, prima-facie, all codal formalities required for processing the matter have now been completed. The Deputy Commissioner, South, is therefore obligated to forward the requisite report to the Land Utilization Department without any further delay.

DECISION:

12. I, in exercise of the powers vested in me under Section 11 of the Establishment of the Office of Ombudsman for the Province of Sindh, Act 1991 (amended up to date), hereby direct the Deputy Commissioner, District South, Karachi to immediately furnish the requisite report along with all supporting documents to the Land Utilization Department enabling it to process the complainant's lease renewal application without any further delay as per applicable laws, rules/regulations and any relevant standing orders.

13. Compliance should be reported within 45 days positively.

Given under my hand and seal of office



Sd /-

(MUHAMMAD SOHAIL RAJPUT)

Sitara-e-Imtiaz. PAS

Ombudsman Sindh

Karachi, dated 10th December, 2025